

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Glenn Brown	Team: Team # 1	CCRB Case #: 201307407	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/03/2013 9:30 PM	Location of Incident: In front of 946 St. Mark's Avenue	18 Mo. SOL 2/3/2015	Precinct: 77
Date/Time CV Reported Wed, 08/14/2013 3:21 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/14/2013 3:21 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Paul Kogan	16446	951877	PBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Juan Moreno	03602	935351	077 PCT
2. POM Ismet Muratovic	30125	954163	PBBN
3. SGT Wayne Mims	04862	919948	PBBN
4. POM David Mercado	11610	952007	PBBN
5. POM Manuel Figueroa	31473	952730	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Paul Kogan	Abuse: PO Paul Kogan questioned § 87(2)(b)	A . Unsubstantiated
B . POM Paul Kogan	Abuse: PO Paul Kogan searched the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Paul Kogan	Abuse: PO Paul Kogan refused to provide his shield number to § 87(2)(b)	C . Alleged Victim Uncooperative
D . POM Paul Kogan	Force: PO Paul Kogan used physical force against § 87(2)(b)	D . Substantiated
E . POM Paul Kogan	Force: PO Paul Kogan used physical force against § 87(2)(b)	E . Exonerated

Case Summary

On August 14, 2013, § 87(2)(b) filed this complaint with the CCRB via telephone.

On August 3, 2013, at approximately 9:30 pm, in front of 946 St. Marks Avenue in Brooklyn, PO Paul Kogan approached § 87(2)(b) while he was seated in his parked vehicle and the following allegations resulted:

- **Allegation A) Abuse of Authority: PO Paul Kogan questioned § 87(2)(b)**
§ 87(2)(b). Therefore, it is recommended that Allegations A and B be closed as **unsubstantiated**.
- **Allegation B) Abuse of Authority: PO Paul Kogan searched the car in which § 87(2)(b) was an occupant.**
§ 87(2)(g). Therefore, it is recommended that Allegation B be closed as **unsubstantiated**.
- **Allegation C) Abuse of Authority: PO Paul Kogan refused to provide his shield number to § 87(2)(b)**
§ 87(2)(g). Therefore, it is recommended that Allegation C be closed as **victim uncooperative**.
- **Allegation D) Force: PO Paul Kogan used physical force against § 87(2)(b)**
§ 87(2)(g). Therefore, it is recommended that Allegation D be closed as **substantiated**.
- **Allegation E) Force: PO Paul Kogan used physical force against § 87(2)(b)**
§ 87(2)(g). Therefore, it is recommended that Allegation E be closed as **exonerated**.

On September 6, 2013, at the time of his CCRB interview, § 87(2)(b) declined to have his complaint mediated.

Results of Investigation

Civilian Statements

Complainant/ Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b). He is a black male, § 87(2)(b), with black hair, and brown eyes. § 87(2)(b), § 87(2)(b) has been a wheelchair-bound paraplegic.*

CCRB Statement: (encl. B3-9)

On September 6, 2013, § 87(2)(b) was interviewed at the CCRB and provided the following statement. On September 10, 2013, § 87(2)(b) was contacted by the CCRB and he provided additional information.

On August 3, 2013, at approximately 9:30 pm, § 87(2)(b) was seated in the driver's seat of his parked and rented Chevrolet Impala on St. Marks Avenue. § 87(2)(b) was not double-parked because there was room enough for a vehicle to pass on his right. The vehicle's license plates were not handicap plates. § 87(2)(b) was using portable hand controls that converted the vehicle's standard foot pedals into hand pedals. § 87(2)(b) wheelchair was

on the passenger's side rear seat.

§ 87(2)(b) was parked, seated alone in his vehicle (which was not running), when PO Paul Kogan, described as a uniformed white male, 5'5" to 5'6" tall, 160 pounds, 24- to 25-years old, knocked on § 87(2)(b) driver's side window. § 87(2)(b) saw PO Ismet Muratovic, identified by the investigation and described as a uniformed white male, 5'6" to 5'7" tall, 155 pounds, standing on the passenger's side of his vehicle. § 87(2)(b) rolled down his windows in response to PO Kogan's knock.

PO Kogan asked § 87(2)(b) if he had a license. § 87(2)(b) told PO Kogan that he was disabled and opened the driver's side door to show PO Kogan the vehicle's hand controls that were affixed to the underside of its steering column. § 87(2)(b) gave PO Kogan his identification.

PO Kogan asked if he had anything in the vehicle. § 87(2)(b) said that he was only carrying his pocket knife which was clipped to his right pants pocket. Only the knife's clip was visible, while the rest of the knife was concealed inside § 87(2)(b) pocket. PO Kogan reached into the vehicle and removed the pocket knife from § 87(2)(b) pocket. § 87(2)(b) told PO Kogan that he could search the vehicle if he liked. PO Kogan asked what § 87(2)(b) first name was and § 87(2)(b) replied, § 87(2)(b). § 87(2)(b) license provides his name as, "§ 87(2)(b)" which might have been why PO Kogan needed the clarification. PO Kogan asked again for § 87(2)(b) first name and § 87(2)(b) supplied his full name: § 87(2)(b). PO Kogan said that he had to check for open warrants and placed a call over his radio. PO Kogan then made a cellular telephone call in which he provided § 87(2)(b) name to the person he called.

Over the next 10 to 15 minutes PO Kogan and § 87(2)(b) did not have any discussion, but § 87(2)(b) girlfriend § 87(2)(b) came out of a nearby apartment and then went back inside. After PO Kogan checked § 87(2)(b) for outstanding warrants, PO Kogan asked § 87(2)(b) to step out of his vehicle. § 87(2)(b) said that he could not step out of the car. PO Kogan said, "You're being fresh. Yes you can stand up." § 87(2)(b) repeated that he could not get out of his vehicle. PO Kogan placed a handcuff on § 87(2)(b) left wrist, pulled § 87(2)(b) hand off of the safety bar and down towards § 87(2)(b) side. PO Kogan pulled § 87(2)(b) left arm away from the vehicle, and § 87(2)(b) tumbled out of the vehicle. § 87(2)(b) refused to place his hands behind his back. He grabbed his legs to prevent PO Kogan from handcuffing him.

A marked prisoner van arrived and two to three uniformed officers, PO David Mercado, identified by the investigation and described as a uniformed Hispanic male, 27- to 28-years old, 5'7" tall, 145 pounds, with a slim build, PO Manuel Figueroa, identified by the investigation and only described as a Hispanic male, and perhaps a second Hispanic male exited the van. PO Kogan placed his knee against § 87(2)(b) right shoulder and punched § 87(2)(b) one time in his mid-torso. § 87(2)(b) gave up and was handcuffed by PO Mercado. § 87(2)(b) requested to be handcuffed in front, but was denied this request.

While § 87(2)(b) was laying on the ground, § 87(2)(b) had come out to the street once more but PO Kogan blocked her from approaching. Several civilians walked over to § 87(2)(b) vehicle and observed what was happening.

PO Muratovic and PO Mercado picked up § 87(2)(b) walked him over to the prisoner van, and placed him in the van. § 87(2)(b) asked to be handcuffed with his hands in front because he was not going to be able to balance himself inside the van. Officers retrieved § 87(2)(b) wheelchair from his car and placed it inside the prisoner van.

§ 87(2)(b) was later released from the stationhouse with four summonses:
§ 87(2)(b)
§ 87(2)(b)

Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b) girlfriend.*

Phone Statement: (encl. B10)

On October 28, 2013, § 87(2)(b) was contacted by the CCRB. § 87(2)(b) statement was consistent with § 87(2)(b) statement with the following noted exceptions.

§ 87(2)(b) observed PO Kogan and PO Muratovic, both standing on the driver's side of § 87(2)(b) vehicle. § 87(2)(b) asked PO Kogan for his badge number and PO Kogan told § 87(2)(b) to step away from the vehicle and that the information would be in the report.

§ 87(2)(b) encouraged § 87(2)(b) to go back inside and § 87(2)(b) complied.

Approximately five minutes later, § 87(2)(b) went back outside and observed § 87(2)(b) on the ground in handcuffs.

§ 87(2)(b) failed to appear for her scheduled interview. Three phone calls were placed to § 87(2)(b) and messages were left asking that she call the CCRB. Two please call letters were sent to § 87(2)(b) and neither of these letters was returned by the United States Postal Service.

NYPD Statements:

Subject Officer: OFFICER PAUL KOGAN

- *At the time of the incident, PO Kogan was § 87(2)(b) old. He is a white male, § 87(2)(b) with brown hair and brown eyes.*
- *On August 3, 2013, PO Kogan worked from 7:30 pm to 4:05 am, was assigned to Impact Post #76/77, was working with PO Muratovic, was dressed in uniform and was on foot.*

Memo Book: (encl. C1-4)

On August 3, 2013, at 9:30 pm, PO Kogan noted in his memo book that he observed a vehicle standing on a sidewalk. The vehicle was on and running. PO Kogan observed a black male sleeping with his seatbelt behind his back and a switchblade knife in plain view protruding from his lap. A strong odor of marijuana emanated from the vehicle. A warrant check produced negative results. The defendant refused to give up his right arm and refused to be handcuffed. He was handcuffed and transported to the stationhouse. At 10:02 pm, Sgt. Moreno instructed PO Kogan to issue summons. At 10:35 pm, PO Kogan issued two B summonses § 87(2)(b)

§ 87(2)(b) At 10:45 pm, PO Kogan issued § 87(2)(b) two C Summonses § 87(2)(b)

§ 87(2)(b) At 11:20 pm, PO Kogan vouchered a switchblade.

Summonses: (encl. C5-8)

PO Kogan issued the above summonses and noted that he observed § 87(2)(b) “on a public sidewalk with intent to create a hazardous or offensive condition by resisting arrest.” § 87(2)(b) actions caused a crowd to form.

CCRB Statement: (encl. C9-13)

On February 14, 2014, PO Kogan was interviewed at the CCRB. On August 3, 2013, at approximately 9:30 pm, PO Kogan noticed a vehicle that was running and parked on a sidewalk. As PO Kogan approached, he observed that § 87(2)(b) who was seated in the partially-reclined driver seat, appeared to be asleep with his seatbelt buckled behind and beneath his body. PO Kogan wanted to ensure both that § 87(2)(b) was alive and well and that he was not intoxicated.

PO Kogan approached and observed a switchblade knife on § 87(2)(b) right leg in “plain view.” PO Kogan did not know if it was in § 87(2)(b) pocket or if it was resting on top of his leg, but PO Kogan was able to identify the knife as a switchblade. The knife was compact and “basically” a handle without a blade visible. Switchblades often have a button, though PO Kogan “could not” say if he saw a button. PO Kogan refused to answer why he “could not say.”

PO Kogan instructed § 87(2)(b) to step out of the vehicle. § 87(2)(b) said something to the effect of, “I’m not coming out of the car.” PO Kogan did not request § 87(2)(b) identification before removing him from the vehicle. PO Kogan did not know if PO Muratovic requested § 87(2)(b) identification. PO Kogan or PO Muratovic opened the driver’s side door. PO Kogan did not observe anything unusual about the steering column. PO Kogan pulled § 87(2)(b) out of the vehicle and brought him face-down onto the ground. He did not place § 87(2)(b) against the vehicle because it is easier to control and detain a suspect on the ground. It is not advisable to place subjects against the car because they can push off, and escape.

PO Kogan handcuffed § 87(2)(b) left hand. § 87(2)(b) held his right arm underneath his body and used his upper-body to “throw” the officers off of him by “bucking and thrashing.” PO Kogan or PO Muratovic requested additional units because they could not handcuff § 87(2)(b). At some point, a crowd formed. § 87(2)(b) girlfriend or fiancée approached and PO Kogan told her to stand back.

PO Kogan and PO Muratovic eventually handcuffed § 87(2)(b). PO Kogan did not strike or punch § 87(2)(b). After § 87(2)(b) was handcuffed, PO Kogan recovered the knife from the driver’s seat next to the center console or on the center console and confirmed that it was a switchblade. PO Kogan and several other officers escorted § 87(2)(b) to the prisoner van.

Even though § 87(2)(b) could have been charged § 87(2)(b), PO Kogan issued a summons § 87(2)(b) at Sgt. Moreno’s instruction. § 87(2)(b) was disorderly when he resisted arrest. The decision to issue § 87(2)(b) a § 87(2)(b) summons, § 87(2)(b) was not his, but Sgt. Moreno’s decision. PO Kogan was not sure when or where a warrant check was performed for § 87(2)(b).

Approximately 36 minutes into PO Kogan’s CCRB interview, PO Kogan was asked if § 87(2)(b) was disabled. PO Kogan acknowledged that § 87(2)(b) was disabled. He stated that he only realized that § 87(2)(b) was paralyzed once § 87(2)(b) was inside the prisoner van and his wheelchair was discovered. A full search of § 87(2)(b) vehicle was not performed, but a search of the “reachable-grabbable area” in the front seat and the back seat was performed. PO Kogan did not recall if § 87(2)(b) ever said that he was paralyzed or that his vehicle was operated with hand-pedals.

There was an odor of marijuana coming from § 87(2)(b) vehicle, but it was never determined from where in the vehicle this odor was coming and marijuana was never found. PO Kogan did not recall if he noticed any modifications to the steering wheel or an apparatus that allowed the driver to operate the pedals with his hands when he recovered the knife from § 87(2)(b) vehicle.

Witness Officer: OFFICER ISMET MURATOVIC

- *At the time of the incident, PO Muratovic was § 87(2)(b) old. He is a white male, § 87(2)(b), with blonde hair and brown eyes.*
- *On August 3, 2013, PO Muratovic worked from 7:30 pm to 4:05 am, was assigned to Impact Post 77, was working with PO Kogan, was dressed in uniform, and was working on foot.*

Memo Book: (encl. C14-15)

On August 3, 2013, PO Muratovic noted in his memo book that at 9:30 pm there was one male stopped by PO Kogan. At 9:59 pm, one individual was placed under arrest by PO Kogan.

CCRB Statement: (encl. C16-20)

On February 14, 2014, PO Muratovic was interviewed at the CCRB. § 87(2)(g)

§ 87(2)(b)' vehicle was parked on the sidewalk next to a park, which is not a legal parking space. PO Muratovic did not recall if the vehicle was running, if he smelled marijuana or if § 87(2)(b) had his seatbelt fastened. PO Kogan began speaking with § 87(2)(b) but PO Muratovic could not hear what PO Kogan was saying. PO Muratovic did not observe a knife on § 87(2)(b).

PO Kogan observed a knife in either § 87(2)(b) right pants pocket or on the center console. PO Kogan said to PO Muratovic, "Look. There's a knife." PO Kogan reached into the vehicle and removed the knife. PO Muratovic did not know what kind of knife it was.

A crowd that had been steadily forming started to grow even larger. PO Muratovic did not see if § 87(2)(b) ever opened the driver's side door of the vehicle, nor did he see if PO Kogan opened the driver's side door. § 87(2)(b) was still inside the vehicle with his door closed when the crowd started to gather. PO Muratovic crossed over to the driver's side of the vehicle for crowd control. § 87(2)(b) was still inside the vehicle.

PO Muratovic did not know if a warrant check was run for § 87(2)(b) on the scene, and he did not run a warrant check on § 87(2)(b).

While PO Muratovic was performing crowd control, he believed that § 87(2)(b) was handcuffed. PO Muratovic did not know why § 87(2)(b) was handcuffed. At some point, "someone" called an 85. After PO Muratovic crossed over to the driver's side, he learned that § 87(2)(b) could not move his legs. PO Muratovic did not know how he learned this and speculated that perhaps someone in the crowd shouted this at him.

PO Muratovic did not know how much time had passed until additional units arrived. PO Muratovic did not know if PO Kogan handcuffed § 87(2)(b) by himself or if other units assisted. PO Muratovic did not recall seeing § 87(2)(b) being taken out of the vehicle or whether § 87(2)(b) was on the ground at any point. PO Muratovic did not recall seeing any officer punch § 87(2)(b). PO Muratovic did not know if § 87(2)(b) resisted being handcuffed. PO Muratovic did not recall seeing § 87(2)(b) being escorted to the police vehicle.

PO Muratovic did not know why § 87(2)(b) was issued a summons § 87(2)(b). He did not know when § 87(2)(b) was in violation of § 87(2)(b).

Witness Officer: SERGEANT JUAN MORENO

- *At the time of the incident, Sgt. Moreno was § 87(2)(b) old. He is a Hispanic male, § 87(2)(b), with black hair and brown eyes.*
- *On August 3, 2013, Sgt. Moreno worked from 5:15 pm to 2:05 am, was assigned to Conditions, was working with PO Craig, was dressed in uniform, and was assigned to an unmarked black sedan, RMP # § 87(2)(b).*

Memo Book: (encl. C21-23)

On August 3, 2013, Sgt. Moreno noted in his memo book that at 9:50 pm, he responded to an

85. At 9:59 pm, one male was under arrest § 87(2)(b) by PO Kogan.

CCRB Statement: (encl. C24-26)

On March 13, 2014, Sgt. Moreno was interviewed at the CCRB. On August 3, 2013, at approximately 9:50 pm, Sgt. Moreno observed a large crowd and approximately five or six police officers on the scene when he arrived. There were between 10 and 25 people in the crowd, with a group of seven or eight people closest to the officers. Many of the individuals in this crowd were shouting at the officers.

PO Kogan was speaking with § 87(2)(b) who was seated in his vehicle when Sgt. Moreno arrived. This was the only time Sgt. Moreno saw § 87(2)(b) on the scene; the next time he saw § 87(2)(b) was at the stationhouse. Sgt. Moreno did not recall if § 87(2)(b) vehicle was parked legally.

PO Kogan said that § 87(2)(b) refused to provide his paperwork or identify himself. Sgt. Moreno did not know that § 87(2)(b) had a knife on him until he returned to the stationhouse. Sgt. Moreno instructed PO Kogan to bring § 87(2)(b) back to the stationhouse because the crowd was making the scene unsafe and it would be safer to perform an investigation at the stationhouse. § 87(2)(b) was not under arrest.

Sgt. Moreno started to perform crowd control, so he did not see how § 87(2)(b) was removed from the scene. Sgt. Moreno did not see officers handcuff § 87(2)(b). He did not recall if § 87(2)(b) had a wheelchair.

As the officers were leaving, PO Craig informed Sgt. Moreno that § 87(2)(b) was paralyzed. Sgt. Moreno believed that PO Craig learned that § 87(2)(b) was paralyzed when § 87(2)(b) was being brought to the prisoner van and someone in the crowd shouted that § 87(2)(b) was paralyzed.

Upon returning to the stationhouse, PO Kogan told Sgt. Moreno that a knife was recovered from § 87(2)(b). Sgt. Moreno was not sure if PO Kogan recovered the knife from § 87(2)(b) vehicle or from his pocket. Sgt. Moreno never saw the knife and he did not know what kind of knife it was.

Sgt. Moreno never observed § 87(2)(b) commit any violations. PO Kogan described what he had observed and Sgt. Moreno signed off on the summonses. § 87(2)(b) was issued a § 87(2)(b) summons because his behavior resulted in an unruly crowd forming.

Witness Officer: OFFICER DAVID MERCADO

- *At the time of the incident, PO Mercado was § 87(2)(b) old. He is a Hispanic male, § 87(2)(b), with black hair and brown eyes.*
- *On August 3, 2013, PO Mercado worked from 7:30 pm to 4:05 am, was assigned to Impact Auto with PO Figueroa, was dressed in uniform, and was assigned to a marked van, RMP #8621.*

Memo Book: (encl. C27-28)

On August 3, 2013, PO Mercado noted in his memo book that at 9:51 pm he arrived at 940 [sic] St. Marks Avenue. At 9:59 pm, one individual was placed under arrest by PO Kogan. At 10:01 pm, PO Mercado arrived at the stationhouse.

CCRB Statement: (encl. C29-C31)

On July 21, 2014, PO Mercado was interviewed at the CCRB. PO Mercado and PO Figueroa responded to a request for additional units by PO Kogan. When PO Mercado arrived, § 87(2)(b) was on the ground next to his vehicle and PO Kogan was handcuffing § 87(2)(b) who was resisting. § 87(2)(b) vehicle was illegally parked. There were

some civilians in the area, though PO Mercado could not estimate how many.

PO Mercado immediately walked over to PO Kogan and § 87(2)(b). PO Mercado did not recall where PO Figueroa went upon exiting the van. PO Mercado observed a wheelchair in the backseat of § 87(2)(b) vehicle. When he saw the wheelchair, PO Mercado realized that § 87(2)(b) was paralyzed. Furthermore, PO Mercado observed that § 87(2)(b) was not moving his legs at all and his legs were abnormally small, which indicated to PO Mercado that § 87(2)(b) was paralyzed. By the time PO Mercado made it over to PO Kogan, PO Kogan had already handcuffed § 87(2)(b). PO Mercado did not recall how PO Kogan was able to handcuff § 87(2)(b). PO Mercado did not recall if PO Kogan punched or struck § 87(2)(b). § 87(2)(b) was screaming very loudly when he was handcuffed.

PO Mercado did not recall where PO Kogan's partner, PO Muratovic, was when he arrived on the scene. PO Mercado and PO Figueroa lifted § 87(2)(b) off of the ground by grabbing one of his legs and one of his arms, brought him to the prisoner van, and placed him inside. PO Mercado did not recall PO Kogan assisting in transporting § 87(2)(b) to the van. PO Kogan removed § 87(2)(b) wheelchair from § 87(2)(b) vehicle. By the time PO Mercado was driving away, a very large crowd had formed and they were angrily yelling at the officers.

Witness Officer: OFFICER MANUEL FIGUEROA

- *At the time of the incident, PO Figueroa was § 87(2)(b) old. He is a Hispanic male, § 87(2)(b), with black hair and hazel eyes.*
- *On August 3, 2013, PO Figueroa worked from 7:30 pm to 4:05 am, was assigned to Impact Auto with PO Mercado, was dressed in uniform, and was assigned to a marked van, RMP #8832.*

Memo Book: (encl. C32-35)

On August 3, 2013, PO Figueroa noted in his memo book that at 9:55 pm he arrived at 946 to back an Impact unit. At 9:59 pm, one individual was under arrest by PO Kogan. At 10:01 pm, PO Figueroa arrived at the stationhouse. At 10:04 pm, he resumed patrol.

CCRB Statement: (encl. C36-38)

On July 11, 2014, PO Figueroa was interviewed at the CCRB. PO Figueroa's statement was consistent with PO Mercado's statement with the following noted exceptions and additions. When PO Figueroa and PO Mercado arrived PO Kogan was struggling to remove § 87(2)(b) from his vehicle. PO Kogan was holding onto § 87(2)(b) left arm and § 87(2)(b) was holding onto his vehicle's center console. A crowd was standing on the sidewalk.

PO Figueroa walked over to the passenger's side of § 87(2)(b) vehicle. PO Figueroa said, "Sir, let go of the center console," and § 87(2)(b) let go. As § 87(2)(b) let go, PO Figueroa turned around. PO Figueroa did not see PO Kogan punch or strike § 87(2)(b). PO Figueroa did not see a knife inside of the vehicle.

PO Figueroa turned around to walk to the driver's side of the vehicle and saw that there was a large crowd of over 30 people behind him. Members of this crowd were screaming and coming very close to PO Figueroa. There were so many people shouting that PO Figueroa could not make out exactly what they were shouting.

While performing crowd control, people in the crowd shouted about a wheelchair and PO Figueroa turned around and saw an officer carrying a wheelchair. PO Figueroa did not realize that § 87(2)(b) was paralyzed.

§ 87(2)(b) was ultimately handcuffed, though PO Figueroa did not see this. After he was handcuffed, § 87(2)(b) was placed into PO Figueroa's van, though PO Figueroa did not see this happen, nor did he see § 87(2)(b) being transported to the van.

Other Officers Interviewed: (encl. C49-52)

On April 24, 2014, Sgt. Wayne Mims was interviewed at the CCRB and he stated that he had no conversation with PO Kogan or Sgt. Moreno on the night of the incident and was not involved in the decision to release § 87(2)(b) with summonses.

NYPD Documents

Event Information: (encl. D1-7)

On August 3, 2013, Foot Post #76 in the 77th Precinct stopped one male at 9:27:08 pm in front of 946 St. Marks Avenue in Brooklyn. At 9:36:07 pm, a warrant check for § 87(2)(b) was requested and at 9:36:35 pm, the warrant check returned negative results. At 9:37:45, a second warrant check was requested for § 87(2)(b) and at 9:38:20 pm that warrant check also returned negative results. At 9:59 pm, Foot Post 76 broadcast that one individual was under arrest. A second Event was generated when the 77th Precinct's Condition Auto (unit SP7) called for additional units outside of 946 St. Marks Avenue at 9:49 pm.

Property Vouchers: (encl. D8)

On August 3, 2013, at 11:09 pm, PO Kogan vouchered a brown switchblade knife § 87(2)(b) for § 87(2)(b)

Command Log: (encl. D9-10)

On August 3, 2013, at 10:05 pm, § 87(2)(b) was arrested § 87(2)(b)

Other Evidence

New York State Police Computer Check: (encl. D19-20)

On August 3, 2013, at 9:36:07 pm, a New York State Police warrant check was performed for § 87(2)(b) At 9:37:46 pm, a second warrant check was performed for § 87(2)(b)

Summons for Incident and Disposition

- On § 87(2)(b), the summonses § 87(2)(b) were both dismissed (encl. E1-2).
- On § 87(2)(b), the summonses § 87(2)(b) were both dismissed.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 17, 2014 (encl. E3).

Civilian's Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]

Civilian's CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A2).

Subject Officer's CCRB History

- PO Kogan has been a member of the service for two years and this is the first (and only) CCRB complaint filed against him (encl. A1).

Conclusion

Identification of Subject Officer

PO Kogan acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

- **Allegation A) Abuse of Authority: PO Paul Kogan questioned § 87(2)(b)**
§ 87(2)(b)
- **Allegation B) Abuse of Authority: PO Paul Kogan searched the car in which § 87(2)(b) was an occupant.**
§ 87(2)(g)

§ 87(2)(b) said PO Kogan approached his vehicle and requested his identification. PO Kogan then asked § 87(2)(b) if he had anything in the vehicle. § 87(2)(b) told PO Kogan that there was nothing in his vehicle except for the pocket knife in his pocket. In response, PO Kogan reached through the window and removed the knife from § 87(2)(b) pocket.

PO Kogan stated that he approached § 87(2)(b) vehicle and noticed an illegal switchblade knife on § 87(2)(b) right leg (or in his right pants pocket, he was not sure). According to PO Kogan, it was only after § 87(2)(b) was in handcuffs that he reached into the vehicle and removed the knife from somewhere inside.

From where PO Muratovic was standing on the passenger's side, he could not hear what conversation (if any) PO Kogan had with § 87(2)(b) nor did he observe a knife inside the vehicle. Within a few moments PO Kogan said to PO Muratovic, "Look. There's a knife." PO Kogan then reached into the vehicle and removed the knife (from where, PO Muratovic was not certain).

People v. Hollman, 79 N.Y.2d 181 (1992) (encl. i-viii) stipulates that before an officer asks an accusatory question of a civilian, he must first have founded suspicion that criminality is afoot. People v. Schlau, 117 A.D.3d (App. Div. 1st Dep't. 2014) (encl.ix-x) allows officers to reach into a vehicle to recover a per se weapon in plain view.

§ 87(2)(g)

Therefore, it is recommended that Allegation A be closed as **unsubstantiated**.

- **Allegation C) Abuse of Authority: PO Paul Kogan refused to provide his shield number to § 87(2)(b)**

In her phone statement, § 87(2)(b) alleged that she asked PO Kogan for his badge number. In response, PO Kogan told § 87(2)(b) to step away and that the information would be in "the report." § 87(2)(b) did not cooperate with the investigation's attempts to obtain a sworn

statement from her. Therefore, it is recommended that Allegation C be closed as **victim uncooperative**.

• **Allegation D) Force: PO Paul Kogan used physical force against** § 87(2)(b)

It is undisputed that PO Kogan pulled § 87(2)(b) out of his vehicle and onto the ground when § 87(2)(b) did not comply with his instruction to exit the vehicle. § 87(2)(g)

§ 87(2)(b) stated that soon after approaching his vehicle, he told PO Kogan that he was a paraplegic, while PO Kogan stated that he did not know § 87(2)(b) was a paraplegic until § 87(2)(b) was already in the prisoner van and another officer discovered his wheelchair.

§ 87(2)(b) stated that he interacted with PO Kogan for at least 15 minutes before PO Kogan pulled him out of the vehicle. § 87(2)(b) said that during this time PO Kogan requested his identification, recovered the knife, and conducted two separate warrant checks.

§ 87(2)(b) license provides his name as, “§ 87(2)(b)” and PO Kogan requested clarification as to his first name while conducting the warrant checks. PO Kogan then instructed § 87(2)(b) to step out of his vehicle. § 87(2)(b) said that he could not and PO Kogan pulled him out of the vehicle.

PO Muratovic corroborated that soon after approaching § 87(2)(b) vehicle, PO Kogan, recovered the knife. PO Muratovic did not know if PO Kogan requested § 87(2)(b) identification or if he performed a warrant check. After the knife was recovered, PO Muratovic began performing crowd control and did not see § 87(2)(b) removal from the vehicle.

§ 87(2)(g) PO Kogan stated that he observed the knife, instructed § 87(2)(b) to exit, and when § 87(2)(b) refused, he pulled him out of the vehicle. PO Kogan then retrieved the knife. PO Kogan did not acknowledge that § 87(2)(b) was paralyzed until the 37th minute of his interview, after he was asked directly about it.

PO Mercado stated that upon arrival, he observed § 87(2)(b) wheelchair and saw that § 87(2)(b) was not moving his legs and that they were abnormally small which led him to believe that § 87(2)(b) was paralyzed.

§ 87(2)(g)

The Events demonstrate that two warrant checks which contained variations of § 87(2)(b) first name were run about ten minutes after the stop. About 10 minutes after the warrant check, a request for additional units was made. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Patrol Guide Procedure 203-11 (encl. xi-xii) requires that officers use the minimum force necessary in overcoming resistance when effecting an arrest.

§ 87(2)(g)

Therefore, it is recommended that Allegation D be closed as **substantiated**.

- **Allegation E) Force: PO Paul Kogan used physical force against** § 87(2)(b)

§ 87(2)(b) stated that once he was on the ground, he grabbed his legs and refused to place his hands behind his back. In response, PO Kogan punched him one time in the torso.

PO Kogan denied striking § 87(2)(b) in the torso while he was struggling to gain control of his right hand. None of the other officers interviewed saw PO Kogan strike § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that Allegation E be closed as **exonerated**.

Team: 1

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date